

# **THE PRIMARY COURTS (ADMINISTRATION OF ESTATES) RULES**

## **G.N. No. 49 of 1971**

### **1. Citation**

These Rules may be cited as the Primary Courts (Administration of Estates) Rules.

### **2. Interpretation**

In these Rules, unless the context requires otherwise—

"Act" means the Magistrates' Courts Act \*;

"administrator" means a person to whom a grant of administration has been made under these rules, and includes an executor appointed by will to whom such grant has been made;

"Civil Procedure Rules" means the Magistrates' Courts (Civil Procedure in Primary Courts) Rules;

"contention" in relation to a grant of administration, means the appearance of any person to oppose the application for the grant;

"court" means a primary court;

"form" means a form prescribed in the Schedule to these Rules;

"will" means the legal declaration of the intentions of a testator with respect to his property which he desires to be carried into effect after his death, and includes an oral will.

### **3. Application**

An application for the appointment of administrator under paragraph 2(a) or 2(b) of the Fifth Schedule to the Act shall be made in Form I.

### **4. Filing of will**

(1) If, in any application under rule 3, it is averred that a will made by the deceased person subsisted at time of his death, the officer of the court shall require the applicant to produce the will or, if the will is not in his custody, to state in writing the name and address of the person for the time being holding the will or, in the case of the will being alleged to have been lost, destroyed or mislaid to submit a written version of the terms of the will together with an affidavit testifying to the correctness thereof.

(2) Where the applicant fails to comply with the requirements of subrule (1), the court may presume that no will subsisted at the time of the death of the deceased person or, if the circumstances of the case so warrant, that the will had been lost, destroyed or mislaid.

(3) If the applicant delivers to the officer of the court a document which he claims to be the will of the deceased person, or to be the terms of such will, the officer shall forthwith make a copy thereof and shall place the original document in safe custody.

## **5. Notice of hearing**

(1) As soon as may be after receiving an application under rule 3, the court shall inform the applicant of the date fixed for the hearing of the application.

(2) Where the court intends to proceed of its own motion under paragraph 2(a) or 2(b) of the Fifth Schedule to the Act, or receives an application under subrule (1) or rule 3, the court shall issue a notice in the appropriate Form to all persons (other than the applicant) known or alleged to be the near relatives of the deceased person or to have been named in his will as executors, requiring their appearance in the court on such date and time as may be specified in the notice:

Provided that where any such person is a minor or is under a legal disability, the notice may be addressed to his guardian or to the person with whom he may be residing.

(3) The provisions of rule 19 of the Civil Procedure Rules shall apply to the service of notice under subrule (2) as they apply to service of summonses.

(4) The court may, if it considers, necessary cause the notice to be advertised by such means as are used locally to make public announcements or by publication in a newspaper having a substantial local circulation, whichever may be appropriate.

## **6. Absence of parties**

(1) Where on the date fixed for the hearing of the application any applicant or any person to whom a notice under subrule (2) of rule 5 had been issued fails to appear, the court may adjourn the hearing or may at the request of any applicant or such person attending the court (provided he expresses his willingness to undertake the administration of the estate) proceed to hear the application and may, at the conclusion of the hearing, make an order granting or refusing to grant administration:

Provided that where the court is satisfied that any notice under subrule (2) of rule 4 has not been duly served or had not been served sufficiently in advance of the hearing, it shall adjourn the hearing.

(2) Where any person on whom a notice under subrule (2) of rule 5 has been served because of his being the guardian of a minor or person under disability or of his being a person with whom a minor or person under disability has been residing fails to appear on the date of hearing, the court may proceed with the hearing or, if the minor or person under disability has no lawful guardian, adjourn the hearing till a guardian has been appointed.

## **7. Grant of administration**

(1) A grant of administration shall be made in Form III and shall state the property to be administered.

(2) Every person who is granted administration under subrule (1) shall be required to sign an undertaking in Form IV, and before signing the same, the terms of the undertaking shall be explained to him by the court in a language which he understands.

(3) The court may require the person to whom administration is granted to give security for the due administration of the estate and no grant shall take effect until such security has been given to the satisfaction of the court.

(4) Where any of the heirs or beneficiaries of the estate is a minor or a person under disability, without prejudice to any order made under paragraph 2(g) of the Fifth Schedule to the Act, not less than two administrators shall be appointed.

## **8. Other matters to be decided by the court**

Subject to the provisions of any other law for the time being applicable the court may, in the exercise of the jurisdiction conferred on it by the provisions of the Fifth Schedule to the Act, but not in derogation thereof, hear and decide any of the following matters, namely—

- (a) whether a person died testate or intestate;
- (b) whether any document alleged to be a will was or was not a valid or subsisting will;
- (c) any question as to the identity of persons named as heirs, executors or beneficiaries in the will;
- (d) any question as to the property, assets or liabilities which vested in or lay on the deceased person at the time of his death;
- (e) any question relating to the payment of debts of the deceased person out of his estate;
- (f) any question relating to the sale, partition, division or other disposal of the property and other assets comprised in the estate of the deceased person for the purpose of paying off the creditors or distributing the property and assets among the heirs or beneficiaries;
- (g) any question relating to investment of money forming part of the estate; or
- (h) any question relating to expenses to be incurred on the administration of the estate.

## **9. Revocation or annulment of grant of administration**

(1) Any creditor of the deceased person's estate or any heir or beneficiary thereof, may apply to court which granted the administration to revoke or annul the grant on any of the following grounds—

- (a) that the administration had been obtained fraudulently;
- (b) that the grant had been made in ignorance of facts the existence of which rendered the grant invalid in law;
- (c) that the proceedings to obtain the grant were defective in substance so as to have influenced the decision of the court;
- (d) that the grant has become useless or inoperative;
- (e) that the administrator has been acting in contravention of the terms of the grant or wilfully or negligently against the interests of creditors, herein or beneficiaries of the estate.

(2) Where any grant of administration is revoked—

- (a) any payments already made bona fide to the administrator shall be a valid discharge to the person making the same;

(b) the person who has been acting as administrator shall forthwith surrender the document evidencing the grant and a full account of administration to the court;

(c) the court may order the person who has been acting as administrator to pay such compensation for the loss or damage caused to the estate or any interest therein by his wilful acts or negligence as the court may determine;

(d) the person who has been acting as administrator shall be entitled to retain and reimburse himself out of the assets of the estate for any reasonable payments made by him bona fide in the course of the administration of the estate; or

(e) the court may appoint any other person from amongst the heirs, executors or beneficiaries of the estate to be the administrator of the estate.

## **10. Statement of assets and liabilities and accounts of the estate**

(1) Within four months of the grant of administration or within such further time as the liabilities court may allow, the administrator shall submit to the court a true and complete statement, in Form V, all the assets and liabilities of the deceased persons' estate and, at such intervals thereafter as the court may fix, he shall submit to the court a periodical account of the estate in Form VI showing therein all the moneys received, payments made, and property or other assets sold or otherwise transferred by him.

(2) The statement and accounts referred to in subrule (1) may, on application to the court, be inspected by any creditor, executor, heir or beneficiary of the estate.

## **11. Application of Civil Procedure Rules**

In relation to all matters not provided for in these Rules, the provisions of the Civil Procedure Rules shall apply to proceedings under these Rules as they apply to other proceedings of a civil nature.

## SCHEDULE

### FOMU I

MAOMBI YA KUMTEUA MSIMAMIZI WA MIRATHI MBELE YA MAHAKAMA YA

MWANZO YA .....

KATIKA .....

USIMAMIZI WA MIRATHI .....

DAAWA NA ..... LA 20.....

KATIKA SHAURI LA MIRATHI YA MAREHEMU .....

WA .....

KATIKA SHAURI LA MAOMBI YA KUMTEUA MSIMAMIZI YALIYOLETWA

NA .....

1. Mimi, ..... wa .....

..... naomba

kuteuliwa kuwa msimamizi wa mirathi ya marehemu .....

..... aliyeishi .....

naye alifariki mahali ..... mnamo tarehe ..... 20.....

2. 1 Maandishi yanayoambatanishwa hapo nyuma yenye alama "A" ni wasia wa mwisho wa marehemu huyo.

AU

2. 2 Marehemu huyo alieleza wosia wa mdomo maelezo yake na namna ulivyotolewa yakielezwa katika hati ya kiapo ya ..... yenye tarehe ..... 20..... inayoambatanishwa hapo nyuma yenye alama ya "A".

AU

2. 3 Marehemu huyo alifariki bila ya kutunga wosia na baada ya kutafuta kwa bidii kama inavyostahili hakuna wosia ulioonekana.

3. Marehemu huyo aliwaacha ndugu zake walio hai (taja majina kwa kirefu na anwani).

.....

.....

4. Maombi haya yamefanywa na mimi kama (eleza sababu za kuomba) iwapo marehemu alitunga wosia na mwombaji si aliyetajwa msimamizi katika wosia wala msimamizi aliyetajwa hajatoa idhini yake, eleza jina na anwani ya msimamizi huyo na kwa nini idhini yake haijapatikana.

.....  
.....  
.....

5. Naamini kuwa mali yote itakayokuwa katika mirathi hii itakuwa na thamani ya: (eleza aina ya mali na thamani yake).

.....  
.....  
.....  
.....  
.....

6. Marehemu alipofariki alikuwa mkaaji wa ..... na/au alikuwa na mali katika eneo la mamlaka ya mahakama hii.

7. Marehemu alikuwa (eleza kabila lake) ..... na alikuwa mfuasi wa dini ya .....

8. Hakuna daawa lolote la kuthibitisha wosia wala kuomba kumteua msimamizi wala jambo lingine linalohusika na mirathi ya marehemu huyo ambalo limeanzishwa mbele ya mahakama yoyote au mamlaka yoyote wala katika nje ya Tanganyika.

Yaneapishwa na kutiwa sahihi ya huyo .....

anayejulikana kwangu/aliyejulishwa kwangu na .....

mbele yangu ..... hii leo tarehe

..... 20.....

## FOMU II

### Citation

Est. 2

KATIKA MAHAKAMA YA MWANZO YA .....

USIMAMIZI WA MIRATHI

NA. .... 20.....

Msimamizi wa mirathi ya marehemu .....

.....

Kwa: .....

.....

.....

.....

Watu wote wanaodai kuwa na uhusiano wowote na mirathi ya marehemu huyo wanaalikwa kuja na kuhudhuria kesi wakitaka mnamo tarehe ..... kabla huyo mwombaji hajateuliwa kuwa msimamizi wa mirathi hiyo.

Wosia wa marehemu huyo upo mahakamani na waweza kukaguliwa.

Tarehe ..... 20.....

.....

Sahihi ya Hakimu

### FOMU III

Bond

Est. 3

KATIKA MAHAKAMA YA MWANZO YA .....

USIMAMIZI WA MIRATHI NA ..... YA 20.....

Katika mirathi ya marehemu .....

wa .....

Ijulikane kutokana na hati hii kuwa mimi .....

.....

wa .....

na mdhamini wangu wa kwanza, wa .....

na wa pili ..... wa ..... tumetoa ahadi

ya pamoja kwa Serikali ya Jamhuri ya Tanzania, ya kulipa Shs. ....

katika Mahakama ya Mwanzo ya ..... na

deni hilo liwe letu na warithi wetu, wasimamizi wetu na wakabidhiwa wetu.

Imetiwa sahihi leo tarehe ..... 20..... Sharti ya fungu hilo ni kwamba iwapo huyo

..... anayetaka kuwa msimamizi

wa mali ya mirathi ya marehemu .....

atatengeneza orodha ya kweli ya mali yote na kuionyesha mbele ya mahakama hii kabla miezi minne haijapita tangu tarehe ya kuteuliwa msimamizi au kabla muda mwingine ambao Mahakama yaweza kuweka kwa wakati wowote, na iwapo atasimamia vema na kuwa muaminifu kuhusu mali hiyo kwa mujibu wa sheria, na zaidi ya hayo akileta katika Mahakama hii hesabu za kweli za mali hiyo, mapato na matumizi yake kabla miezi minne haijapita au muda mwingine mahakama itakaouweka kwa wakati wowote, na iwapo baki ya mali hiyo atakayokuwa nayo atawagawia watu ambao wana haki nayo kwa mujibu wa sheria, basi kama atatimiza hayo ahadi iwe batili wala isitimizwe lakini kama hatimizi ahadi hiyo iwe halali na iweze kutiwa nguvu.

Imetiwa sahihi na kutolewa na hao

.....)

.....) Sahihi ya Msimamizi

.....) Sahihi ya Mdhamini

mbele yangu



Shahidi .....

Sahihi ya Mdhamini

**FORM IV**

**APPOINTMENT OF AN ADMINISTRATOR**

(M.C.A. Cap. II, 5th Schedule Para. 2)

In the Primary Court of .....  
Administration of the estate of .....

On this ..... day of ..... 20.....  
..... was appointed  
administrator of ..... being the estate of  
the late .....  
who died on the ..... day of .....  
20....., having undertaken well and faithfully to administer the estate as hereunder mentioned.

A copy of the will of the deceased is annexed and the estate is to be administered accordingly.

Sgd .....

Primary Court Magistrate

I/We hereby solemnly and sincerely declare that I/we will well and faithfully administer the estate of the above named deceased person, paying his just debts and distributing the residue of his estate according to law, and will keep true and fully detailed accounts of all and singular the estate and effects of the deceased and of my/our dealing with the property and will produce them to the said court whenever required.

Dated this ..... day of ..... 20.....  
.....

Administrator

**USIMAMIAJI WA MIRATHI**  
**(S.M.M. 1963 Nyongeza ya 5 Fasili 2)**

Mbele ya Mahakama ya Mwanzo ya .....  
Usimamizi wa Mirathi ya .....  
Mnamo leo tarehe .....  
..... ameteuliwa kuwa msimamizi  
wa mirathi ya marehemu ..... aliyefariki mnamo  
tarehe ..... 20..... akiwa ameahidi kusimamia mirathi kwa  
wema na uaminifu kama ilivyoielezwa hapo chini.

Mirathi isimamiwe kwa kufuata nakala ya wosia wa marehemu iliyoambatanishwa.  
.....

Hakimu

Mimi/Sisi ..... na/tunathibitisha kwa kiapo kuwa ni/tutasimamia kwa  
wema na uaminifu mirathi ya marehemu aliyetajwa hapo juu, ni/tukilipa madeni yake ya haki na  
kugawa baki ya mirathi yake kwa mujibu wa sheria, nami/nasi tutaweka hesabu kamili na za kweli za  
mali yote ya mirathi na ya marehemu pamoja na jinsi ni/tutakavyofanya nayo nami/nasi  
ni/tutaonyesha hesabu hizo mbele ya Mahakama hii siku yoyote zitakapotakiwa.

Imetiwa sahihi leo tarehe ..... 20.....  
.....

Msimamizi

**FOMU V**  
**ORODHA YA MALI**

Inventory

Est. 5

Katika Mahakama ya Mwanzo ya .....

Usimamizi wa Mirathi Na. .... ya 20.....

Marehemu .....

Tarehe ya kuteuliwa .....

Mali:

Na.      Maelezo ya mali      Thamani

Mali isiyoondosheka

Fedha taslim

Fedha katika Benki

Hisa na Hati

Malipo ya Bima

Haki za Biashara

Madeni ya

kukusanya

Vyombo vya

nyumani

Vitu vya binafsi

Mali nyinginezo

Madeni:

Na.      Maelezo      Thamani

Majina ya wadai

Vitu vilivyowekwa

rehani

Madeni mengine

Gharama za

matibabu

Gharama za kuzikwa      Jumla

Mimi ..... msimamizi wa

mirathi ya huyo ..... nathibitisha kuwa

orodha hii ya mali ya mirathi hiyo ni kweli kadri nijuavyo, niambiwavyo na nidadikivyo.

Yameapishwa na kutiwa sahihi ya huyo anayejulikana kwangu/aliyejulishwa kwangu na

..... mbele yangu .....

..... hii leo tarehe ..... 20.....

Imewasili Mahakamani leo tarehe ..... 20.....

.....

Sahihi ya Karani

**FOMU VI**  
**HESABU ZA MIRATHI**

Account

Est. 6

Katika Mahakama kya Mwanzo ya .....

Usimamizi wa Mirathi Na ..... ya 20.....

Marehemu .....

Tarehe ya kuteuliwa .....

Mapato:

1. Thamani ya mirathi katika orodha ya mali.
2. Thamani hasa ya pesa zilizopatikana Shs. ....
3. Hasara au faida wakati wa kuuza

Jumla ya Thamani .....

Matumizi:

1. Gharama za kuzika
2. Madeni yaliyolipwa
3. Gharama za Usimamizi
4. Baki ya mirathi tayari kugawiwa.  
Baki hiyo ya Shs. .... imegawiwa (au itagawiwa)

kati ya wafuatao wenye haki ya kupata:

Jina Ana Haki gani Kiasi

Mimi ..... Msimamizi wa Mirathi

ya huyo ..... nathibitisha kuwa hesabu

hizo ni kweli kadiri nijuavyo na nisadikivyo.

Yameapishwa na kutiwa sahihi ya huyo

.....

anayejulikana kwangu/anayejulishwa kwangu )

)

)

.....

Sahihi ya Msimamizi

na .....

mbele yangu .....

..... hii leo

tarehe ..... 20..... )

)

Imewasili Mahakamani leo tarehe ..... 20.....

.....

Sahihi ya Karani